

ASSESSMENT

- 3.

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Course name :- Ethical Hacking.

Ethical obligations and contractual scope when discovering unrelated criminal activity During an Authorized penetration test.

A penetration test is an authorized security assessment conducted to identify vulnerabilities in an organization's system. Ethical hackers perform these tests with client's permission and must follow professional ethics, legal requirements, and agreed scope of work. Sometimes a penetration tester may accidentally discover evidence of an unrelated crime, such as employee embezzlement or fraud.

Understanding the contractual scope.

Before a penetration begins, client and testing team agree on a scope that defines which system can be tested, with methods are following allowed, and how findings should be reported. The tester must stay within these boundaries throughout the engagement.

Ethical obligations.

i) Maintain Confidentiality

Penetration testers often access sensitive information. any unrelated information discovered during testing should be remain confidential and should not be

shared with unauthorized individuals.

2. stay within the Scope.

The tester should avoid accessing additional files or collecting extra evidence related to the unrelated crime. Their responsibility is to perform only the tasks authorized by the client.

3. Act with integrity.

Professional integrity requires the tester to be honest, responsible and unbiased. They should accurately report what they observed without making assumptions or accusations.

4. Document the finding

If the Significant, test should document only the information that was accidentally encountered. The report should contain factual observations rather than personal opinions.

Reporting the discovery.

The penetration tester should report the finding through the designated client contact, such as the security manager, project manager, or legal department, as to the procedures defined in the contract. Tester should not independently contact law enforcement ^{or} other employees unless required by law or specifically

authorized by the client.

Legal and Ethical Considerations.

The tester must follow applicable laws, organizational policies, and professional ethics. Conducting an independent investigation could violate privacy rights or interfere with future legal proceedings. By remaining within the agreed scope and following proper reporting procedures, the tester protects both the client and their own professional reputation.

Example

Suppose a penetration tester is accessing a company's Payroll System. During the assessment, they accidentally notice records suggesting unauthorized transfers of company funds. Instead of investigating further, the tester should stop reviewing unrelated records, document the observation, and report it to the authorized client representative. The client can then decide whether to begin an internal investigation.

Conclusion

When a penetration tester discovers evidence of an unrelated crime during an authorized engagement,

the ethical response is to maintain confidentiality, avoid exceeding the agreed scope, document the observation accurately, and report it through appropriate client contact. following both ethical principles and contractual obligations ensures professionalism, protects the clients interests, and maintains trust in the cybersecurity profession.